

Hiring in New *York*.

The takeaway from the module. Four rules change how you interview and make an offer for a role based in New York: background checks run in two phases, the offer is conditional until they finish, salary history is off the table, and every candidate gets the same fair interview. Your recruiter runs the process. Never get ahead of it.



HIRING LEADER BEST PRACTICES

1

Timely feedback

Send your interview feedback to your recruiter within the agreed timeline.

2

Recruiter alignment

Align with your recruiter on the feedback and the decision to move forward.

3

Phase 1 checks

Confirm with your recruiter that the non-criminal checks are complete before any offer.

4

Conditional offer

Extend the verbal offer with the required conditional script. Your recruiter sends the written one.

THE SEQUENCE

PHASE 1 · BEFORE ANY OFFER

Non-criminal checks.

- References, employment and education verification
- Run by Recruiting; your recruiter confirms when complete
- No verbal or written offer of any kind until then



THE CONDITIONAL OFFER

Verbal from you, written from your recruiter.

- After Phase 1 is complete and you and your recruiter agree
- You say the script, nothing more
- Recruiting sends the written conditional offer



PHASE 2 · AFTER THE WRITTEN OFFER

Criminal background check.

- Begins only after the written conditional offer is issued
- If something comes back, Recruiting runs the Fair Chance process with the candidate
- You never decide that alone

REQUIRED VERBAL OFFER LANGUAGE

"We're excited to extend you a *conditional offer*, pending successful completion of *background checks* and *final onboarding steps*..."

NEVER ADD

"The job is yours." "It's just a formality." "You can give notice." A fixed start date. Each one turns a conditional offer into a promise.

SALARY HISTORY · NY LABOR LAW 194-A

YOU MAY NOT

- ✗ Ask what a candidate earns now or earned before, directly or indirectly
- ✗ Ask a reference, former employer, or recruiter for it
- ✗ Use prior pay to decide whether to offer, or what to offer

YOU MAY

- ✓ Ask what salary the candidate expects for this role
- ✓ Share the pay range for the role; it is in the posting
- ✓ Base the offer on the role, market data, and internal equity

If a candidate volunteers a number: let it pass. No follow-up questions, and it stays out of the offer discussion and your notes.

A FAIR INTERVIEW

1. **Decide before you meet anyone.** Four to six competencies, one behavioral question each, what a strong answer sounds like.
2. **Ask everyone the same questions,** in the same order. Probe on their answer, not with new questions.
3. **Score before you talk.** Rate each answer against the rubric before the panel compares notes. Note what they said, not how they seemed.
4. **Feedback within the timeline,** to your recruiter. Phase 1 cannot start without you.

Never asked, in any form: age or graduation year, family plans or children, citizenship or origin (work authorization is fine), religion, disability or health, arrests not pending or any sealed record, credit, salary history.